

The Leaders And Chief Whips Of Recognized Parties And Groups In Parliament (Facilities) Act, 1998

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The Leaders And Chief Whips Of Recognized Parties And Groups In Parliament (Facilities) Act, 1998

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The Leaders And Chief Whips Of Recognized Parties And Groups In Parliament (Facilities) Act, 1998

Act 5 of 1999

Published on 7 January 1999

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The Leaders And Chief Whips Of Recognized Parties And Groups In Parliament (Facilities) Act, 1998

ACT NO. 5 OF 1999

1192.

[7th January, 1999]

An Act to provide for facilities to Leaders and Chief Whips of recognized parties and groups in Parliament.

BE it enacted by Parliament in the Forty-ninth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Leaders and Chief Whips of Recognized Parties and Groups in Parliament (Facilities) Act, 1998.

(2)

[It shall be deemed to have come into force on the 5th day of February, 1999.]

[Substituted by Act 18 of 2000, section 2, for sub-section (2) (w.e.f. 5.2.1999).]

2.

[Definitions.

[Substituted by Act 18 of 2000, section 3, for section 2 (w.e.f. 7.6.2000).]

- In this Act, unless the context otherwise requires,-

(a)

"recognized group" means,-

(i)

in relation to the Council of States, every party which has a strength of not less than fifteen members and not more than twenty-four members in the Council;

(ii)

in relation to the House of the People, every party which has a strength of not less than thirty members and not more than fifty-four members in the House;

(b)

"recognized party" means,-

(i)

in relation to the Council of States, every party which has a strength of not less than twenty-five members in the Council;

(ii)

in relation to the House of the People, every party which has a strength of not less than fifty-five members in the House.]

3.

[Facilities to the Leaders and Chief Whips of recognized groups and parties.

[Substituted by Act 18 of 2000, section 4, for section 3 (w.e.f. 7.6.2000).]

- Subject to any rules made in this behalf by the Central Government, each leader and each Chief Whip of a recognized group and a recognized party shall be entitled to telephone and secretarial facilities:

Provided that such facilities shall not be provided to such leader, deputy leader or Chief Whip, as the case may be, who-

(i)

holds an office of Minister as defined in section 2 of the Salaries and Allowances of Ministers Act, 1952 (58 of 1952); or

(ii)

holds an office of the Leader of the Opposition as defined in section 2 of the Salary and Allowances of Leaders of Opposition in Parliament Act, 1977 (33 of 1977); or

(iii)

is entitled to similar telephone and secretarial facilities by virtue of holding any office of, or representation in, a Parliamentary Committee or other Committee, Council, Board, Commission or other body set up by the Government; or

(iv)

is entitled to similar telephone and secretarial facilities provided to him in any other capacity by the Government or a local authority or Corporation owned or controlled by the Government or any local authority.]

4.

Power to make rules.

(1)

The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(2)

Every rule made under sub-section (1) shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so,

however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

5.

Amendment of section 3 of Act

10 of 1959

.

-In the Parliament (Prevention of Disqualification) Act, 1959, in section 3,-

(i)

after clause (ab), the following clause shall be inserted, namely:-

"(ac) the office of [each leader and each deputy leader]

[Substituted by Act 18 of 2000, section 5, for 'each leader' (w.e.f. 5.2.1999).]

of a recognized party and a recognized group in either House of Parliament;"

(ii)

after Explanation 2, the following Explanation shall be inserted, namely:-

Explanation 3. - In clause (ac), the expressions "recognized party" and "recognized group" shall have the meanings assigned to them in the Leaders and Chief Whips of Recognized Parties and Groups in Parliament (Facilities) Act, 1998.'

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